

**CHAPTER 76.**

An Act to postpone Elections of local authorities and other bodies and the preparation of the Parliamentary and Local Government Registers, and for purposes incidental thereto. A.D. 1915.
[29th July 1915.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The next statutory elections of county and borough councillors, district councillors, guardians, and parish councillors, shall be postponed for a year, and the term of office of the existing councillors and guardians shall accordingly be extended by one year. Postponement
of local elec-
tions.

This provision shall apply only where the next statutory election would take place before the first day of July nineteen hundred and sixteen.

(2) Any casual vacancy, requiring to be filled by election, among the members of any county council, any borough council, any district council, any board of guardians, or any parish council shall, until a new register comes into force, instead of being filled by an election, be filled by means of the choice by the council or board of a person to fill the vacancy, and a councillor or guardian so chosen shall hold office in the same manner in all respects as if he had been elected to fill the vacancy.

(3) The provisions of this section may be applied, if necessary, to the election, appointment or co-optation of the chairman, vice-chairman, elective auditors, or members of any kind of local or other body or committee thereof, by order of the Local Government Board as respects local bodies, and by order of the appropriate Government Department as respects any other bodies, and may be so applied with the necessary modifications and either generally as regards all bodies of any particular kind, or specially as regards any particular body or bodies. In the year nineteen hundred and sixteen the day of election of a

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chairman of a county council in England and Wales other than the London County Council shall be the day of the first ordinary quarterly meeting of that council after the eighth day of March in that year, and nothing in any Act of Parliament shall require the council to hold a meeting for the election of the chairman or of aldermen apart from other county business.

(4) Any provisions of any Act or Order or regulations relating to any such councillors or guardians, or to any such chairman, vice-chairman, or member of a local or other body, shall be construed as if they were modified in such a manner as to give effect to the provisions of this section, and the Local Government Board as respects councillors, guardians, or local bodies, and the appropriate Government Department as respects any other bodies, if any question arises, may by Order specify the actual modification which is to be made in pursuance of this section.

(5) If any question arises as to the appropriate Government Department by which an Order should be made under this section, that question shall be determined by the Treasury, and their decision on the matter shall be conclusive for all purposes.

(6) For the purposes of this section the expression "councillor" includes "alderman," the expression "borough" includes "metropolitan borough," the expression "statutory election" means an election to fill the place of councillors and guardians retiring on the expiration of their term of office, and the expression "existing councillors and guardians" means councillors and guardians who are in office at the time when the next retirement of councillors or guardians after the passing of this Act would, but for this Act, have taken place.

Saving for the
City of
London.

2. In the City of London this Act shall apply as regards elections to the Common Council, but in the case of a vacancy, casual or otherwise, occurring in the office of alderman or ward officer that vacancy shall be filled by election on the register existing at the time of the passing of this Act.

This Act shall not apply to elections in Common Hall.

Postponement
of registration.

3.—(1) The parliamentary and local government register of electors, or any register based on the same, in force at the time of the passing of this Act, shall remain in force until Parliament provides for special registers being made or otherwise directs, but in no case after the thirty-first day of December nineteen hundred and sixteen; and the provisions of the Acts relating to the registration of electors, so far as regards the preparation of the new registers in the present year, shall not as from the end of the thirty-first day of July be carried into effect; and any appointments of revising barristers already made, and contracts already entered into for the purpose of the preparation of the registers in the present year are, so far as respects that purpose, hereby annulled:

Provided that nothing in this Act shall prevent any payment being made to the overseers or any other officer or person in respect of work done under or in connection with the Acts relating to the registration of electors before the first day of August for the purpose of the preparation of the registers in the present year. A.D. 1915.

(2) If any question arises as to any such payment or the apportionment thereof, or as to the effect of this section on any contract, that question shall be referred to the Local Government Board, and their decision thereon shall be conclusive for all purposes:

Provided that the duty of certifying for payment of expenses certifiable by a revising barrister in relation to the preparation of the register in the present year, and the apportionment of such expenses, shall be performed by the Local Government Board or by some person appointed by them.

4.—(1) In the application of this Act to Scotland, “the Secretary for Scotland” shall be substituted for “the Local Government Board,” “town council” and “town councillors” shall be substituted for “borough council” and “borough councillors,” respectively, and “municipal register” shall be substituted for “local government register of electors.” Application to Scotland and Ireland.

Nothing in section one of this Act shall operate to continue any councillor in the office of bailie beyond the date at which he would in ordinary course have retired as a councillor.

(2) In the application of this Act to Ireland, “the Local Government Board for Ireland” shall be substituted for “the Local Government Board.”

Courts shall be held in Ireland by county court judges or in the county of Dublin or the county of the city of Dublin by revising barristers for the revision under the Juries (Ireland) Acts, 1871 to 1894, of jurors’ lists in the present year, at such times (not later than the fifteenth day of November) and places as may be fixed by the Lord Chancellor of Ireland, notwithstanding that no courts are to be held in the present year for the revision of the register of parliamentary voters.

5. This Act may be cited as the Elections and Registration Act, 1915. Short title.